

- (a) allows any rolling stock to stand across a place where the railway crosses a public road on the level ; or
- (b) keeps a level crossing closed against the public, he shall be punishable with fine which may extend to one hundred rupees.

Comment

Section 176 lays down the punishment for a railway servant unnecessarily obstructing railway crossing.

177. False returns. – If any railway servant required to furnish return by or under this Act, signs and furnishes a return which is false in any material particular or which he knows or believes to be false, or does not believe to be true, he shall be punishable with imprisonment which may extend to one year, or with fine which may extend to five hundred rupees, or with both.

Comment

Section 177 provides for punishment for a railway servant furnishing false returns.

178. Making a false report by a railway servant. –If any railway servant who is required by a railway administration to inquire into a claim for loss, destruction, damage, deterioration or non-delivery of any consignment makes a report which is false or which he knows or believes to be false or does not believe to be true, he shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both.

Comment

Section 178 provides punishment for a railway servant for making a false report in claims enquiry.

179. Arrest for offences under certain sections. –

(1) IF any person commits any offence mentioned in sections 150 to 152, he may be arrested without warrant or other written authority by any railway servant or police officer not below the rank of a head Constable.

(2) If any person commits any offence mentioned in Secs. 137, 141 to 147, 153 to 157, 159 to 167, and 172 to 176, he may be arrested without warrant or other written authority by the officer authorised by a notified order of the Central Government.

(3) the railway servant or the police officer or the officer authorised, as the case may call to his aid any other person to effect the arrest under sub-section (1).

(4) Any person so arrested under this section shall be produced before the nearest Magistrate within a period of twenty-four hours of such arrest excluding the time necessary for the journey from the place of arrest to the court of the Magistrate.

Comment.

Section 179 provides for arrest of a person without warrant for the offences mentioned therein.

180. Arrest of persons likely to abscond, etc. – (1) Any person who commits any offence under this Act, other than an offence mentioned in Sec. 179, or is liable to pay any excess charge or other sum demanded under Sec. 138, fails or refuses to give his name and address or there is reason to believe that the name and address given by him are fictitious or that he will (officer authorised) any railway servant authorized in this behalf or any police officer not below the rank of a head constable may arrest him without warrant or written authority.

(2) The officer authorised may call to his aid any other person to effect the arrest under sub-section (1).

(3) Any person arrested under this section shall be produced before the nearest Magistrate within a period of 24 twenty-four hours of such arrest excluding the time necessary for the journey from the place of arrest to the court of the Magistrate unless he is released earlier or giving bail or if his true name and address are ascertained before on executing a bond without sureties for his appearance before the Magistrate having jurisdiction to try him for the offence.

(4) The provisions of chapter. XXIII of the Code of Criminal Procedure, 1973 (2 of 1974), shall so far as may be, apply to the giving of bail and the execution of bonds under this section.

Comments

Any police officer not below the rank of head constable, or any railway servant authorised in this behalf is empowered to arrest any person accused of any offence under this act, except in case of an offence under section 179 or a liability under section 138, without warrant.

“180(A) –Inquiry by officer authorised to ascertain commission of offence: